

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARGUERITE BACON BRADLEY,

Petitioner

VS.

JORGE VARGAS GONZALEZ,

Respondent

) Case Number: FDV-25-818369

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF PETITIONER BRADLEYS REQUEST FOR ORDER FL300 CHANGE
OF VISITATION (PARENTING TIME), ATTORNEY FEES AND COSTS, CHANGE RALLY
LOCATION & ORDER FATHER TO COOPERATE WITH SERVICE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Marguerite Bacon Bradley (Mother) and Respondent, Jorge Vargas Gonzalez (Father). They share one minor child named Luisa Vargas Bradley (DOB: 05/24/24).
- 2) On March 30, 2026, Mother filed a Request for Order seeking a modification to the parenting time schedule, change of Rally location, and an order for Father to cooperate with service, and attorney fees. Mother also asked the Court for an order that electronic service be permitted.
- 3) On April 3, 2026, Mother filed a declaration in support of her Request for Order, which has been read and considered by the Court.
- 4) On April 21, 2026, Father filed a Responsive Declaration to Mother's Request for Order, which has been read and considered by the Court.

- 1 5) On April 28, 2026, Mother filed a “Reply Declaration of Petitioner Marguerite Bacon Bradley to
2 Respondent Jorge Vargas Gonzalez’s Responsive Declaration to Petitioner’s RFO,” which has
3 been read and considered by this Court.
- 4 6) On May 4, 2026, the Court held a “Readiness” hearing and granted Mother’s request to transfer
5 the supervised exchange from San Francisco Rally to San Mateo Rally. The Court did not
6 address any of the other issues contained within Mother’s March 30, 2026, Request for Order,
7 pending further hearing. The Court ordered both parents to attend FCS Mediation on June 12,
8 2026, and continued the matter for hearing on June 30, 2026.
- 9 7) On June 23, 2026, Father filed a “Supplemental Responsive Declaration in Opposition to
10 Petitioner’s Request for Orders,” which has been read and considered by the Court.

11 **B. Findings and Order**

- 12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.
- 16 2) From review of the pleadings, it appears Mother has relocated the minor child to San Mateo
17 County. The Court notes that even though Mother has sole legal and sole physical custody, she
18 cannot unilaterally relocate the minor child, without Father’s permission or an order of the Court.
19 Given that Father’s Responsive Declaration did not raise any objection to Mother’s relocation of
20 the minor child, the Court will assume Father has given Mother consent to relocate with the
21 minor child to San Mateo County and will not disturb the parties’ agreement.
- 22 3) Mother’s request for a change in the Rally supervised exchange from San Francisco County to
23 San Mateo County is DENIED. The Court is aware it made an interim order at the “Readiness”
24 hearing conducted on May 4, 2026. However, the Court is vacating its orders for “supervised
25 exchanges.” All further exchanges will be conducted at a police station near each parent’s
26 respective homes. The receiving parent will pick up the minor child from the police station
27 closest to the other parent. Both parties shall coordinate the police station locations with their
28 respective attorneys.
- 29 4) Mother’s request to reduce Father’s parenting time is DENIED.

- 1 5) Mother's request for attorney fees is DENIED, as there is no disparity in access to funds and
2 Father does not have the present ability to pay his own fees and Mother's.
- 3 6) Mother's request for an order requiring Father to make himself reasonably available for and to
4 cooperate with service of process is DENIED. The Court does not have the authority to modify
5 the provisions contained within the Code of Civil Procedure relating to service of process.
- 6 7) Father's request for makeup time, for missed visits, is DENIED.
- 7 8) Father's request for a slight increase in his parenting time is GRANTED. Father's parenting
8 time, with the minor child shall be on the 1st, 3rd and 5th weekends of each month from Saturday
9 at 9:00 a.m., through Sunday at 6:00 p.m. In addition, Father shall have parenting time with the
10 minor child every Wednesday from 4:00 p.m. – 7:30 p.m. The Court DENIES Father's request to
11 institute a further "step up" plan at this time.
- 12 9) All prior orders, not in conflict with the orders herein, shall remain in full force and effect.
- 13 10) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 14 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).
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